

finds the requested hourly rates to be reasonable for the area and the work performed. The Court is very familiar with this matter having presided over both jury trials and issued rulings on numerous Law and Motion matters. The Court has reviewed Exhibit 2 and finds that the hours expended are reasonable, including the hours billed for the future given that they will occur on this motion.

The only argument by Defendants that the Court finds compelling is regarding any reduction relates to the hours expended unsuccessfully defending motions to compel discovery filed by Defendants. The Court will reduce the award for the following entries:

- August 31, 2020 - \$1,110
- September 4, 2020 - \$1,080
- September 14, 2020 - \$300
- October 19, 2020 - \$360
- October 21, 2020 - \$60
- October 26, 2020 - \$300

This results in a total deduction of \$3,210, thereby reducing the fee award to \$278,635.

The motion is **GRANTED**. The Court finds that the 1996 Judgment allows for recovery of attorney fees on this action and that Plaintiffs are the prevailing parties. Apportionment is not appropriate intertwined nature of the claims. The hours expended and rates requested are reasonable, with the exception of the hours noted above. Attorney's fees are awarded to Plaintiffs, payable by Defendants, in the amount of \$278,635. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: SISK

CASE NUMBER: 26CV-0210590

Tentative Ruling on Petition for Change of Name: Petitioner Marisa Angeline Sisk seeks to change her name to Nina Angeline Sisk. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.

CASE NUMBER: 23CV-0202926

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 3, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. The Mandatory Settlement Conference in this matter was to take place on June 8, 2026. No party filed a Mandatory Settlement Conference Statement. Counsel for David and Lori Howland filed a declaration that provides sufficient excuse. The Order to Show Cause is **DISCHARGED** as to David Howland, Lori Howland, and their counsel only. No other party responded to the Order to Show Cause.

Without sufficient excuse for failing to timely file a Mandatory Settlement Conference Statement, monetary sanctions are imposed in the amounts of \$250 against Plaintiff Subway Real Estate, LLC and counsel Bowman and Brooke, LLP, and \$250 against Defendant Marikit Del Rosario Sabet and counsel NewPoint Law Group, LLP. The clerk is directed to issue separate Orders of Sanctions.